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Law – 538: Information Technology Law (Paper – III) 5th Semester (Syllabus)

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UNIT – I

1. Introduction: Cyber Law, Need for Cyber Law and Cyberspace

➤ **Meaning of Cyber Law**

Cyber Law refers to the body of laws and legal principles that regulate activities relating to computers, computer networks, the Internet and other digital technologies. It deals with legal issues arising from the use of cyberspace, electronic communication and digital transactions.

Cyber Law covers matters such as electronic records, electronic contracts, digital signatures, cyber offences, data protection, privacy and electronic commerce.

In India, the principal legislation dealing with cyber law is the **Information Technology Act, 2000**, which provides legal recognition to electronic transactions and contains provisions relating to cyber offences and other matters connected with information technology.

➤ **Need for Cyber Law**

The rapid growth of computers and the Internet has changed the way people communicate, conduct business and exchange information. Activities such as online banking, e-commerce, electronic communication and digital transactions require a proper legal framework.

The main reasons for the need for Cyber Law are:

1. **Legal Recognition of Electronic Transactions:** Cyber Law gives legal recognition to electronic records and electronic methods of authentication, making electronic transactions legally valid.
2. **Prevention of Cyber Crimes:** New technologies have created offences such as unauthorized access, identity theft, online cheating and other computer-related crimes. Cyber Law provides legal remedies and penalties against such activities.
3. **Promotion of E-Commerce:** It provides legal certainty to online business transactions and electronic contracts.
4. **Development of E-Governance:** Cyber Law facilitates the use of electronic records and digital communication in government services and administration.
5. **Protection of Information and Privacy:** Digital information may be stolen, altered or misused. Legal provisions are therefore necessary to regulate and protect information in the digital environment.
6. **Regulation of Activities in Cyberspace:** As the Internet allows people to interact across national boundaries, Cyber Law helps regulate rights, duties and liabilities arising from such activities.

Thus, Cyber Law is essential for ensuring the lawful, secure and reliable use of information technology.

➤ **Meaning of Cyberspace**

Cyberspace refers to the virtual or electronic environment created by interconnected computers, computer networks, communication systems and the Internet. It is the space in which digital communication and online activities take place.

It includes activities such as:

- Sending and receiving emails;
- Online communication;
- Internet banking;
- E-commerce;
- Social networking;

- Exchange of electronic information; and
- Other activities carried out through computer networks and digital devices.

Cyberspace is not confined to the geographical boundaries of any particular country. A person sitting in one country can communicate or conduct transactions with another person located anywhere in the world.

Therefore, cyberspace is often described as a **borderless virtual environment**. This characteristic creates several legal issues, particularly relating to jurisdiction, enforcement of laws and investigation of cyber offences.

In conclusion, cyberspace is the digital environment in which electronic activities take place, while Cyber Law provides the legal framework for regulating such activities.

2. HISTORY, DEFINITION, NATURE AND KINDS OF CYBER CRIME

(i) History and Evolution of Cyber Crime

Cyber crime developed along with the growth of computers and communication technology. In the early stage of computer development, computers were mainly used by governments, scientific institutions and large organizations. As a result, computer-related offences were initially limited and generally involved unauthorized access, manipulation of data or misuse of computer systems.

With the development of computer networks and the Internet, cyber crime gradually became more complex and widespread. The rapid growth of the Internet during the 1990s created new opportunities for criminals to commit offences across geographical boundaries. Activities such as hacking, unauthorized access, data theft, online fraud and the distribution of illegal content began to increase.

The development of e-commerce, online banking and digital communication further expanded the scope of cyber crime. Criminals started using computers and the Internet not only as the **target of crime** but also as a **tool for committing traditional offences** such as cheating, fraud, theft and forgery.

In response to these developments, countries started introducing special laws relating to computer crimes and electronic transactions. At the international level, the development of model laws and international cooperation contributed to the growth of Cyber Law.

In India, the **Information Technology Act, 2000** was enacted to provide legal recognition to electronic transactions and to deal with offences relating to computer resources and information technology. The **Information Technology (Amendment) Act, 2008** further expanded the Act by introducing and modifying provisions relating to cyber offences, identity theft, cheating by personation, violation of privacy and cyber terrorism, among other matters.

Today, cyber crime has become a major challenge because of the widespread use of smartphones, social media, online banking, digital payments, cloud computing and other emerging technologies.

(ii) Definition and Nature of Cyber Crime

Definition of Cyber Crime

The term “**Cyber Crime**” is **not specifically defined as a single comprehensive expression under the Information Technology Act, 2000**. Generally, cyber crime refers to an unlawful act in which a computer, computer system, computer network or other digital device is involved either as the **target, tool or place of the offence**.

In simple words:

Cyber crime means an illegal activity committed by using a computer, computer network, Internet or other digital technology, or an offence directed against such computer resources.

Cyber crimes may therefore include offences such as unauthorized access, identity theft, online cheating, violation of privacy and other offences committed through or against computer resources.

Nature of Cyber Crime

The main characteristics of cyber crime are as follows:

1. **Use of Technology:** Cyber crimes are committed through computers, networks, the Internet, mobile devices or other digital technologies.
2. **Computer as Target or Tool:** A computer may itself be the target of an attack, or it may be used as a tool for committing another offence.
3. **Borderless Nature:** Cyber crimes can easily cross national and geographical boundaries, making jurisdiction and investigation difficult.
4. **Speed and Wide Reach:** A cyber offence can be committed and spread rapidly, often affecting a large number of persons simultaneously.
5. **Difficulty in Identification:** Offenders may use false identities or conceal their actual identity, making detection and investigation challenging.
6. **Electronic Evidence:** Cyber crimes generally involve electronic or digital evidence, which may be easily copied, altered or deleted.
7. **Continuous Evolution:** The nature and methods of cyber crime constantly change with the development of new technologies.

(iii) Different Kinds of Cyber Crime

Cyber crimes can be classified into different categories depending upon the nature of the offence and the person or institution against whom it is committed.

➤ Cyber Crimes Against Individuals

These are offences in which an individual is the main victim. Examples include:

- Identity theft;
- Online cheating and fraud;
- Cyber stalking;
- Violation of privacy;
- Impersonation;
- Online harassment; and
- Misuse of personal information.

➤ Cyber Crimes Against Property

These offences involve damage, theft or unauthorized interference with digital or computer-related property. Examples include:

- Unauthorized access to computer systems;
- Data theft;
- Damage or destruction of computer data;
- Software piracy;
- Intellectual property infringement; and
- Unauthorized copying or alteration of digital information.

➤ Cyber Crimes Against Organizations

Businesses, companies, banks and other institutions may become victims of cyber attacks. Such offences may include:

- Unauthorized access to organizational computer systems;
- Theft of confidential information;
- Attacks on computer networks;
- Disruption of online services; and
- Financial fraud through digital systems.

➤ **Cyber Crimes Against Government**

Cyber crimes may also be directed against government institutions, computer systems and important information infrastructure. Such offences may threaten national security, public order or essential services.

Examples may include:

- Unauthorized access to government computer systems;
- Attacks on critical information infrastructure;
- Theft or destruction of sensitive government information; and
- Cyber terrorism.

➤ **Hacking and Unauthorized Access**

This involves gaining access to a computer system, computer resource or network without proper authority or permission. Such unauthorized access may result in theft, alteration, destruction or misuse of data.

➤ **Identity Theft**

Identity theft occurs when the identity-related information of another person is dishonestly or fraudulently used without lawful authority. It may involve the misuse of electronic signatures, passwords or other unique identification features.

➤ **Cheating by Personation through Computer Resources**

A person may dishonestly pretend to be another individual through a computer resource or communication device in order to deceive or cheat another person. Such offences commonly occur through fake accounts, fraudulent messages and other forms of online impersonation.

➤ **Violation of Privacy**

The use of digital devices to capture, publish or transmit images of a person's private area without consent may amount to an offence under the applicable provisions of law.

➤ **Cyber Fraud**

Cyber fraud includes fraudulent activities committed through computers, the Internet or digital communication. Examples include online financial fraud, fraudulent websites and other forms of deception intended to obtain money or valuable information.

➤ **10. Cyber Terrorism**

Cyber terrorism involves the use of computer resources for activities that may threaten national security, sovereignty, integrity or other protected interests of the State, as provided under the relevant law.

(iv) Legal Position Around the Globe

The growth of the Internet and digital technology has made cyber crime an international problem. Since cyber offences can easily cross national boundaries, countries around the world have developed laws and international mechanisms to regulate cyberspace and combat cyber crime.

Different countries have adopted different legal approaches depending upon their legal systems and technological requirements. However, certain common areas are generally regulated, such as:

- Unauthorized access to computer systems;
- Computer-related fraud;
- Identity theft;
- Data and privacy protection;
- Cybersecurity;
- Electronic transactions; and
- Online content and cyber offences.

➤ International Development

At the international level, the **United Nations Commission on International Trade Law (UNCITRAL)** played an important role in the development of laws relating to electronic commerce. The **UNCITRAL Model Law on Electronic Commerce, 1996** provided a model for giving legal recognition to electronic records and electronic transactions.

Another important international instrument is the **Convention on Cybercrime, commonly known as the Budapest Convention, 2001**. It deals with cybercrime and international cooperation in the investigation and prosecution of such offences.

Position in India

In India, the principal legislation in this field is the **Information Technology Act, 2000**. It provides legal recognition to electronic records and electronic transactions and contains provisions dealing with several computer-related offences.

The Act was substantially amended by the **Information Technology (Amendment) Act, 2008**, which introduced and strengthened provisions relating to matters such as identity theft, cheating by personation, violation of privacy and cyber terrorism.

Thus, although there is no single uniform cyber law applicable throughout the world, international cooperation and model laws have played an important role in the development of national cyber laws.

(v) Prevention of Cyber Crime

Prevention of cyber crime requires a combination of legal measures, technological security and public awareness. Since cyber offences are continuously changing, individuals, organizations and governments must take appropriate preventive measures.

The following are important methods for preventing cyber crime:

1. Use of Strong Authentication

Users should use strong and unique passwords and, wherever possible, additional methods of authentication should be adopted to prevent unauthorized access.

2. Protection of Personal Information

Personal, financial and confidential information should not be unnecessarily shared through untrusted websites, messages or applications.

3. Use of Updated Software

Computer systems and applications should be regularly updated to reduce security vulnerabilities.

4. Awareness and Education

Users should be made aware of online fraud, identity theft, suspicious links, fraudulent messages and other common cyber threats.

5. Data Security

Organizations should adopt appropriate security measures to protect important information from unauthorized access, loss or misuse.

6. Reporting of Cyber Offences

Cyber offences should be reported promptly to the appropriate authorities so that timely investigation and preventive action can be taken.

7. Effective Laws and Enforcement

Strong legal provisions, effective investigation, trained law-enforcement agencies and international cooperation are necessary for controlling cyber crime.

Therefore, prevention of cyber crime is not only the responsibility of the Government. Individuals, organizations, service providers and law-enforcement agencies must work together to create a secure cyber environment.

(f) UNCITRAL: United Nations Commission on International Trade Law

Introduction

UNCITRAL stands for the **United Nations Commission on International Trade Law**. It is a body established by the United Nations General Assembly in **1966** to promote the progressive harmonization and modernization of international trade law.

Its objective is to reduce legal barriers arising from differences between the laws of different countries and to promote uniformity and certainty in international commercial transactions.

Role of UNCITRAL in Cyber Law

With the growth of electronic commerce, UNCITRAL recognized the need for legal rules governing electronic transactions. It played an important role in developing international standards and model laws relating to e-commerce.

Its most significant contribution in this field is the:

UNCITRAL Model Law on Electronic Commerce, 1996

The Model Law was designed to facilitate electronic commerce by establishing principles for the legal recognition of electronic communications and records.

Its important principles include:

1. **Legal recognition of electronic records;**
2. **Recognition of electronic communications;**
3. **Validity of electronic contracts;**
4. **Recognition of electronic signatures and authentication methods;**
5. **Acceptance of electronic records for legal purposes; and**
6. **Promotion of electronic commerce and paperless transactions.**

A major principle behind the Model Law is that electronic information should not be denied legal effect merely because it is in electronic form.

Importance for India

The UNCITRAL Model Law on Electronic Commerce, 1996, significantly influenced the development of legislation relating to electronic commerce in various countries, including India.

The **Information Technology Act, 2000** was enacted to provide legal recognition to electronic records and electronic transactions and reflects important principles developed at the international level, particularly those relating to the legal validity of electronic communication and commerce.

Conclusion

UNCITRAL has played an important role in the development and harmonization of international trade law. Its work on electronic commerce provided an important legal foundation for the recognition and growth of electronic transactions. The UNCITRAL Model Law on Electronic Commerce, 1996, is therefore considered an important international development in the evolution of Cyber Law.

UNIT – II

1. HACKING

➤ Evolution of Hacking

The term **hacking** originally had a meaning different from its present legal and criminal sense. In the early days of computer development, particularly during the 1960s and 1970s, a hacker was generally considered a person with advanced technical knowledge who experimented with computer systems and attempted to understand how they worked.

With the increasing use of computers and computer networks, some persons began using their technical knowledge to gain access to systems without authorization. As a result, hacking gradually came to be associated with **unauthorized access, interference with computer systems and misuse of data**.

Development with Computer Networks

During the early stages of computer networking, hacking was mainly limited to large computer systems and networks because computers were not widely available to the general public. As technology developed and personal computers became common, more people gained access to computer systems.

The development of the Internet significantly changed the nature of hacking. A person could now attempt to access computer systems located far away without physically entering the premises where the computer was situated.

This gave rise to new forms of computer-related offences, including:

- Unauthorized access to computer systems;
- Theft of data;
- Interference with computer resources;
- Creation and use of malicious programs;
- Online fraud; and
- Attacks on computer networks.

Hacking in the Internet Age

The rapid expansion of the Internet during the 1990s and later resulted in a significant increase in cyber attacks. Businesses, banks, governments and individuals started storing important information in digital form. Computer networks became essential for communication, commerce and administration.

As dependence on digital technology increased, hacking became a serious threat to:

- Personal privacy;
- Financial security;
- Business information;
- Government data; and

- National security.

Today, hacking may be carried out by individuals, organized criminal groups or other actors. Modern hackers may use advanced technology to exploit weaknesses in computer systems, networks and online services.

Thus, hacking has evolved from technical experimentation with computer systems into a major cybersecurity and legal concern.

➤ (ii) Techniques of Hacking

Hackers may use different techniques to obtain unauthorized access to a computer system, network or digital account. The method used depends upon the security weaknesses of the target.

Some common techniques are discussed below.

1. Password Attacks

Passwords are often used to protect computer systems and online accounts. Hackers may attempt to obtain or misuse passwords to gain unauthorized access.

This may occur through weak passwords, stolen credentials or other methods of obtaining authentication information.

Therefore, weak and easily predictable passwords can increase the risk of unauthorized access.

2. Phishing

Phishing is a technique in which a person is deceived into disclosing confidential information, such as login credentials or financial details, through fraudulent electronic communication or fake websites.

The attacker may pretend to represent a bank, company, government authority or another trusted person or organization.

3. Malware

Malware refers to malicious software designed to damage, disrupt, monitor or gain unauthorized access to a computer system.

Different forms of malicious software may affect computers, mobile devices and networks.

4. Exploitation of Security Vulnerabilities

Computer programs and networks may contain security weaknesses or vulnerabilities. Hackers may attempt to exploit such weaknesses to obtain unauthorized access or interfere with the functioning of a computer system.

Regular security updates are important for reducing such risks.

5. Social Engineering

Social engineering involves manipulating or deceiving a person in order to obtain confidential information or access to a system.

Instead of directly attacking a computer, the attacker may take advantage of human trust, fear, urgency or lack of awareness.

6. Network Attacks

Hackers may attempt to interfere with or gain unauthorized access to computer networks. Such attacks may affect the confidentiality, integrity or availability of information and computer services.

7. Denial of Service Attacks

In some cases, attackers may attempt to disrupt the normal functioning of a computer system or network by overwhelming or interfering with its services, making the service unavailable or difficult to access for legitimate users.

➤ (iii) Reasons for Hacking

The motives behind hacking may differ from one person to another. Some hacking activities are carried out for financial gain, while others may be motivated by curiosity, personal rivalry, revenge or other objectives.

1. Financial Gain

One of the major reasons for hacking is financial benefit. Criminals may attempt to obtain money, financial information or valuable digital assets through unauthorized activities.

2. Theft of Information

Confidential information may have significant commercial or personal value. Hackers may target databases or computer systems to obtain business information, personal information or other valuable data.

3. Curiosity and Technical Challenge

Some individuals may attempt to enter computer systems merely to test their technical skills or overcome security barriers. However, unauthorized access may still create legal consequences even when the primary motive is curiosity.

4. Revenge or Personal Grievance

A person may attempt to damage or access a computer system because of a personal dispute, workplace conflict or other grievance.

5. Political or Ideological Motives

Some cyber attacks may be motivated by political or ideological objectives. Such activities may target government institutions, organizations or particular groups.

6. Espionage

Unauthorized access may be carried out to obtain confidential, commercial or strategic information.

7. Fame and Recognition

Some hackers may seek recognition within technical or criminal communities by demonstrating their ability to compromise a highly protected system.

8. Disruption or Mischief

In certain cases, the purpose may simply be to cause disruption, damage or inconvenience to an individual or organization.

➤ (iv) Prevention of Hacking

Prevention of hacking requires appropriate technical measures, user awareness and effective security practices. Since no computer system can be considered completely risk-free, the objective is to reduce vulnerabilities and detect unauthorized activities at an early stage.

1. Use Strong and Unique Passwords

Passwords should be sufficiently strong and should not be easily guessed. Important accounts should use different passwords rather than repeating the same password everywhere.

2. Use Multi-Factor Authentication

Where available, multi-factor authentication provides an additional layer of security by requiring more than one method of verification before access is granted.

3. Regularly Update Software

Operating systems, applications and security software should be updated regularly. Updates may correct known security weaknesses and reduce the possibility of exploitation.

4. Protection Against Malware

Appropriate security software and safe computing practices can help reduce the risk of malicious software. Files and applications from untrusted sources should be treated with caution.

5. Protection Against Phishing

Users should carefully verify suspicious emails, messages, links and websites. Confidential information should not be provided merely in response to an unexpected communication.

6. Secure Computer Networks

Organizations should protect their networks through appropriate security measures, access controls and regular monitoring.

7. Backup of Important Data

Important information should be backed up regularly. Backups can help in recovering data if a system is damaged, disrupted or compromised.

8. User Awareness and Training

Human error is often an important security risk. Individuals and employees should be educated about password security, suspicious communications, unauthorized software and other cyber threats.

9. Access Control

Access to important systems and information should be limited to authorized persons. Users should only receive the level of access necessary for their legitimate work.

10. Legal Measures and Reporting

Effective laws and law-enforcement mechanisms are also important for preventing hacking. Incidents of unauthorized access or other cyber offences should be reported to the appropriate authorities so that necessary action can be taken.

➤ Important Case Laws

1. R v. Gold and Schifreen (1988)

This is an important early case relating to unauthorized access to a computer system.

In this case, Robert Schifreen and Stephen Gold obtained unauthorized access to the **British Telecom Prestel computer system** by using the credentials of another person. At that time, the existing law was not considered adequate to deal specifically with unauthorized access to computer systems.

The case exposed the limitations of traditional criminal law in dealing with computer-related offences and contributed to the development of specific legislation on computer misuse in the United Kingdom.

Importance: The case is regarded as an important development in the evolution of laws dealing with hacking and unauthorized access to computer systems.

2. Syed Asifuddin and Others v. State of Andhra Pradesh (2005)

This is an important Indian case concerning unauthorized interference with computer-related information.

In this case, allegations were made regarding the unauthorized alteration of electronic identification information relating to mobile phones. The court considered the applicability of the provisions of the **Information Technology Act, 2000**.

The case is important because it recognized that unauthorized interference with computer-related information and electronic data may attract legal consequences under the Information Technology Act.

Importance: The case helped in understanding the scope of legal protection provided to computer resources and electronic information against unauthorized interference.

3. State of Tamil Nadu v. Suhas Katti (2004)

This case is considered one of the earliest important convictions under the **Information Technology Act, 2000**.

The accused was involved in posting objectionable and defamatory messages relating to a woman on an online platform. The case involved the misuse of electronic communication and demonstrated the application of the Information Technology Act to offences committed through digital technology.

Importance: Although primarily associated with cyber harassment and the publication of objectionable material, the case is significant as an early example of the effective application of cyber law in India.

Conclusion

Hacking has evolved from early experimentation with computer systems into a serious cybersecurity and legal issue. Modern hackers may use techniques such as password attacks, phishing, malware, social engineering and exploitation of security weaknesses. Their motives may include financial gain, information theft, curiosity, revenge or other objectives.

Effective prevention requires a combination of **strong security practices, updated technology, access control, user awareness and effective legal enforcement**. In the context of Indian law, unauthorized acts involving computer resources may attract liability under the relevant provisions of the **Information Technology Act, 2000**.

2. CYBER STALKING

Cyber stalking is one of the important forms of cyber crime in which a person uses the Internet, electronic communication or other digital technology to repeatedly harass, threaten, monitor or intimidate another person.

Unlike traditional stalking, cyber stalking can be carried out without physical proximity. A person may use emails, social media platforms, messaging applications, fake accounts or other electronic means to continuously contact or monitor the victim.

➤ Nature and Extent of Cyber Stalking

Meaning and Nature

Cyber stalking generally involves **repeated and unwanted conduct** through electronic means that causes harassment, fear, intimidation or mental distress to the victim.

The conduct may include:

- Repeatedly sending unwanted messages or emails;
- Continuously contacting a person through social media;
- Monitoring a person's online activities;
- Creating fake profiles in the name of the victim;
- Sending threatening or abusive communications;
- Publishing personal information without authority; or
- Repeatedly attempting to contact the victim despite clear refusal.

The essential feature of cyber stalking is generally the **persistent and unwanted use of electronic communication or digital technology to target a particular person**.

Nature of Cyber Stalking

Cyber stalking has certain special characteristics:

1. It can be committed from a distance

The offender does not need to be physically present near the victim. The Internet enables a person to contact or monitor another person from almost anywhere.

2. It may involve anonymity

The offender may use:

- Fake identities;
- Anonymous accounts;
- False email addresses; or
- Multiple online profiles.

This may make identification of the offender more difficult.

3. It can be continuous and repetitive

A stalker may repeatedly contact the victim through different digital platforms. Even after the victim blocks one account, the offender may attempt to contact the victim through another account.

4. It may seriously affect the victim

Cyber stalking can result in fear, mental harassment, emotional distress and invasion of privacy. In serious cases, online stalking may also develop into physical stalking or other forms of harassment.

5. Wide reach and rapid dissemination

Digital information can be copied and circulated quickly. Therefore, personal photographs, messages or other information, if unlawfully obtained or published, may spread widely within a short period.

Extent of Cyber Stalking

The extent of cyber stalking has increased with the growth of:

- Social networking sites;
- Smartphones;
- Instant messaging applications;
- Email services; and
- Other online communication platforms.

Today, a person may be targeted through several platforms simultaneously. Cyber stalking may affect women, men, children, professionals, public figures and other users of digital services.

The widespread availability of Internet access has therefore increased both the opportunities for cyber stalking and the difficulty of controlling persistent online harassment.

➤ (ii) Different Kinds of Cyber Stalking

Cyber stalking may take different forms depending upon the method used by the offender.

1. Email Stalking

This involves repeatedly sending unwanted, threatening, abusive or harassing emails to a person.

The stalker may use one or several email accounts to continue contacting the victim.

2. Social Media Stalking

In this form, the offender repeatedly monitors or contacts the victim through social networking platforms.

The stalker may:

- Send repeated messages;
- Follow the victim's online activities;
- Create multiple accounts;

- Post offensive material; or
- Continuously attempt to establish unwanted contact.

3. Online Harassment

The offender may repeatedly send abusive, offensive or threatening communications through digital platforms with the intention of harassing or intimidating the victim.

4. Cyber Impersonation or Fake Profile Stalking

A stalker may create a false profile in the name of the victim or another person. Such fake profiles may be used to deceive others, damage the victim's reputation or continue unwanted communication.

5. Monitoring and Surveillance through Digital Means

In some cases, the offender may repeatedly monitor the victim's online presence, activities or publicly available information in an intrusive manner.

Where unlawful surveillance, unauthorized access or other illegal conduct is involved, additional legal provisions may also become applicable.

6. Doxxing and Disclosure of Personal Information

A person's personal information may be unlawfully collected and published online with the intention of harassing, threatening or exposing the victim.

This may increase the risk of further harassment by other persons.

7. Sexual or Intimate Image-Based Harassment

A person may use digital technology to threaten, harass or intimidate another person through intimate or private images. Depending upon the facts, such conduct may attract provisions relating to privacy, obscenity, sexual harassment or other applicable offences.

➤ (iii) Methods of Cyber Stalking

Cyber stalkers may use different methods and technologies to repeatedly target a victim.

1. Repeated Electronic Communication

The stalker may continuously send:

- Emails;
- Text messages;
- Direct messages;
- Voice or video communications; or
- Other unwanted electronic communications.

2. Use of Fake Accounts

A person may create multiple or false accounts to contact the victim after being blocked or ignored.

Fake accounts may also be used to hide the identity of the offender.

3. Monitoring Social Media Activities

The stalker may continuously monitor the victim's:

- Posts;
- Comments;

- Friends or followers;
- Public activities; and
- Other information shared online.

Such monitoring may become stalking when it forms part of persistent and unwanted conduct that causes harassment or fear.

4. Impersonation

The offender may pretend to be the victim or another person in order to communicate with others, obtain information or cause harm to the victim.

5. Unauthorized Access to Digital Accounts

In serious cases, a stalker may attempt to gain unauthorized access to the victim's email, social media or other accounts in order to obtain private information or monitor communications.

6. Publication or Circulation of Personal Information

The offender may misuse personal photographs, contact details or other private information to harass or threaten the victim.

7. Threatening and Intimidating Messages

Cyber stalking may involve threats of physical harm, publication of private information or other forms of intimidation intended to create fear in the mind of the victim.

➤ Legal Position in India

The **Information Technology Act, 2000** does not contain a separate and specific provision exclusively defining “cyber stalking.” However, depending upon the nature of the conduct, different provisions of the Information Technology Act and other criminal laws may apply.

The most important specific provision relating to stalking is found in **Section 78 of the Bharatiya Nyaya Sanhita, 2023 (BNS)**, which includes monitoring the use by a woman of the Internet, email or any other form of electronic communication.

Thus, cyber stalking may be dealt with under the law relating to stalking, along with other applicable provisions depending upon the facts, such as provisions concerning:

- Identity theft;
- Cheating by personation through computer resources;
- Violation of privacy;
- Unauthorized access; and
- Other offences involving electronic communication or digital information.

❖ Landmark Case Law

Kalandi Charan Lenka v. State of Odisha (2017)

This is considered an important Indian case relating to **cyber stalking and online harassment**.

In this case, the victim was allegedly subjected to continuous online harassment. Fake accounts were created, and objectionable and offensive material was circulated online in her name.

The case highlighted the manner in which digital platforms can be misused to:

- Harass a victim;
- Create fake online identities;
- Damage reputation; and

- Cause mental distress.

The case is significant because it demonstrated the need to apply cyber laws and criminal laws to deal with persistent online harassment and misuse of a person's identity.

S. P. Gupta v. Union of India and Another – Privacy Context

The development of privacy jurisprudence has also become relevant to offences involving the misuse of personal information and digital intrusion. However, the legal understanding of privacy in India has developed significantly through later judicial decisions.

A particularly important development is the recognition of privacy as a fundamental right by the Supreme Court in **Justice K. S. Puttaswamy (Retd.) v. Union of India (2017)**.

Although this case was not specifically a cyber stalking case, it is important in understanding the constitutional importance of privacy in the digital age.

➤ Conclusion

Cyber stalking is a serious form of cyber crime involving the repeated and unwanted use of digital technology to harass, intimidate, threaten or monitor another person. Its major forms include email stalking, social media stalking, impersonation, online harassment and misuse of personal information.

The growth of social media and electronic communication has increased the scope of cyber stalking. In India, although the Information Technology Act, 2000 does not separately define cyber stalking, legal action may be taken under **Section 78 of the Bharatiya Nyaya Sanhita, 2023**, along with other applicable provisions of the Information Technology Act and criminal law, depending upon the facts of the case.

3. PORNOGRAPHY

Pornography and obscenity on the Internet have become important issues in cyber law because digital technology makes it easy to create, publish, transmit and access sexually explicit or obscene material. The Internet also creates difficulties relating to jurisdiction, anonymity and the rapid circulation of such content.

(i) Pornography on the Internet

Meaning

Internet pornography refers broadly to pornographic or sexually explicit material that is created, published, transmitted, distributed, stored or accessed through the Internet or other digital and electronic media.

Such material may include:

- Images and photographs;
- Videos;
- Electronic publications;
- Websites and online platforms; and
- Other forms of digital content.

The Internet has significantly increased the availability and circulation of such material because digital content can be copied and transmitted quickly across geographical boundaries.

Legal Issues

Pornography on the Internet raises several legal and social issues, particularly relating to:

- Obscenity;
- Protection of children;

- Consent and privacy;
- Unauthorized publication of intimate material;
- Freedom of speech and expression;
- Jurisdiction; and
- Responsibility of online intermediaries.

It is important to distinguish between **adult sexual content** and material that is legally prohibited. The mere use of the word “pornography” does not automatically determine criminal liability; liability depends upon the nature of the material and the specific legal provisions applicable to its publication, transmission or other conduct.

Under Indian law, electronic publication or transmission of certain obscene or sexually explicit material may attract liability under the **Information Technology Act, 2000**, particularly **Sections 67 and 67A**, depending upon the nature of the content.

(ii) Obscenity and Pornography

The terms **obscurity** and **pornography** are related but are not necessarily identical.

Obscurity

Obscurity generally refers to material that is considered legally objectionable because of its sexual, lascivious or depraving character, according to the applicable legal test and statutory provisions.

Under **Section 67 of the Information Technology Act, 2000**, punishment may arise where a person publishes, transmits or causes to be published or transmitted, or certain other specified conduct involving material in electronic form, if the material is lascivious, appeals to prurient interest, or tends to deprave and corrupt persons who are likely to read, see or hear it.

Sexually Explicit Material

Section 67A of the Information Technology Act, 2000 deals specifically with material containing a sexually explicit act or conduct in electronic form. The provision provides for more serious punishment than that prescribed under Section 67.

Thus, the IT Act makes a distinction between:

- **Obscene material in electronic form – Section 67**, and
- **Material containing sexually explicit acts or conduct – Section 67A.**

Important Judicial Development

The Supreme Court has considered the question of obscenity in several cases. Earlier approaches focused substantially on whether isolated portions of a work could deprave or corrupt susceptible persons.

A significant development occurred in:

Aveek Sarkar v. State of West Bengal (2014)

In this case, the Supreme Court moved away from the strict **Hicklin test** and adopted the **community standards test** for determining obscenity.

The Court emphasized that a work should generally be judged in its entirety and in its proper context rather than by examining an isolated part alone.

Importance: The case is an important authority for understanding the modern judicial approach towards obscenity in India.

(iii) Child Pornography

Meaning

The expression “**child pornography**” has traditionally been used to describe sexually explicit material involving a child. However, current legal and judicial discourse increasingly uses the expression **Child Sexual Exploitative and Abuse Material (CSEAM)** to emphasize that such material represents sexual exploitation and abuse of children.

The creation, publication, transmission, possession, storage, browsing or other handling of such material may attract serious criminal liability depending upon the facts and the applicable law.

Legal Protection under the Information Technology Act, 2000

Section 67B of the Information Technology Act, 2000 specifically deals with material depicting children in sexually explicit acts or conduct and related forms of online child sexual exploitation.

The provision covers various prohibited acts involving such material, including specified forms of publication, transmission, creation, collection, browsing, downloading, advertising and other conduct involving electronic material, subject to the exact language and requirements of the section.

The punishment under Section 67B is more severe because the offence concerns the sexual exploitation of children.

Protection under Other Laws

Child sexual exploitation may also attract liability under other applicable laws, particularly the **Protection of Children from Sexual Offences Act, 2012 (POCSO Act)**, along with relevant provisions of general criminal law.

Therefore, offences involving sexually explicit material depicting children may involve the application of multiple statutes depending upon the facts of the case.

➤ Landmark Case Law

Avnish Bajaj v. State (NCT of Delhi) – The Baazee.com Case

This case arose from the circulation and sale of an objectionable video through the online platform **Baazee.com**.

The case raised important questions regarding:

- Liability for online publication and transmission of objectionable material; and
- The responsibility and liability of intermediaries and persons operating online platforms.

Importance: The case is significant in the development of Indian cyber law concerning online obscene material and intermediary liability.

Aveek Sarkar v. State of West Bengal (2014)

The Supreme Court held that obscenity should be assessed according to contemporary community standards and that the material should be examined in its overall context.

Importance: It is a landmark case concerning the legal test for determining obscenity in India.

Just Rights for Children Alliance v. S. Harish (2024)

The Supreme Court dealt with issues relating to child sexual exploitative and abuse material and emphasized the seriousness of offences involving the sexual exploitation of children through digital material. The judgment is significant for clarifying the legal approach towards the viewing, possession and storage of such material and for recognizing the importance of protecting children in the digital environment.

Importance: This is an important recent development concerning **Section 67B of the Information Technology Act, 2000** and child sexual exploitation material.

➤ Conclusion

Pornography and obscenity in the digital environment raise complex issues concerning freedom of expression, privacy, online publication and protection from sexual exploitation. The **Information Technology Act, 2000** addresses obscene material,

sexually explicit material and material involving the sexual exploitation of children through **Sections 67, 67A and 67B** respectively.

The law gives special and stricter protection to children, and material involving child sexual exploitation is treated as a serious offence. The interpretation of obscenity has also developed through judicial decisions such as **Aveek Sarkar v. State of West Bengal**, while recent judicial developments have further strengthened the legal approach towards child sexual exploitative and abuse material.

UNIT – III

1. CYBER CRIMES IN FINANCIAL ACTIVITIES

The increasing use of Internet banking, mobile banking, credit and debit cards, digital wallets, UPI and other electronic payment systems has made financial transactions faster and more convenient. At the same time, it has also created opportunities for cyber criminals to commit financial fraud.

Financial cyber crime refers to unlawful activities committed through computers, mobile devices, computer networks or the Internet with the object of obtaining money, financial information or other economic benefits illegally.

(i) Kinds of Financial Cyber Crime

Financial cyber crimes may take different forms depending upon the method used by the offender.

1. Phishing

Phishing is a common form of online financial fraud. The offender sends a fraudulent email, message or creates a fake website that appears to belong to a bank, payment service or another trusted organization.

The victim may be induced to disclose confidential information such as:

- Username and password;
- Bank account details;
- Card details;
- OTP or authentication information.

The information obtained may then be used for unauthorized financial transactions.

2. Identity Theft

Identity theft involves the dishonest or fraudulent misuse of another person's identity-related information.

A criminal may misuse:

- Passwords;
- Electronic signatures;
- Financial credentials; or
- Other unique identification information

to gain access to accounts or commit financial fraud.

3. Credit and Debit Card Fraud

In this type of crime, the offender unlawfully obtains or misuses card-related information for unauthorized transactions.

Such fraud may occur through:

- Theft of card information;
- Fake online payment pages;

- Unauthorized transactions; or
- Other fraudulent methods.

The victim may suffer financial loss as a result of transactions carried out without authority.

4. Online Banking Fraud

Online banking fraud involves the unauthorized or fraudulent use of Internet or mobile banking facilities.

The offender may deceive the victim into disclosing confidential banking credentials or may otherwise obtain unauthorized access to the account.

5. UPI and Digital Payment Fraud

With the increasing use of digital payment systems, criminals may use fraudulent messages, fake payment requests or other deceptive methods to induce users to transfer money or disclose confidential information.

A common method involves creating a false impression that the victim will **receive money**, while the victim is actually being induced to authorize a payment.

6. Cheating by Personation

A cyber criminal may pretend to be a bank employee, customer-care representative, government official or another trusted person in order to deceive the victim and obtain money or confidential financial information.

Such offences may involve fake websites, fraudulent calls, emails or social media accounts.

7. Investment and Online Trading Fraud

Cyber criminals may create fake investment schemes, trading platforms or fraudulent websites promising unusually high returns.

Victims may be induced to invest money, after which the offender may disappear or prevent the victim from withdrawing the funds.

8. Business Email Compromise

In this form of financial cyber crime, an offender may impersonate a business executive, employee, supplier or other trusted person through electronic communication.

The purpose is generally to deceive an organization into transferring money or changing payment details.

9. Ransomware and Financial Extortion

Malicious software may be used to disrupt access to digital information or systems, followed by a demand for payment.

Such attacks can affect individuals, companies and financial institutions and may cause both direct financial loss and disruption of business operations.

(ii) Legal Position in India

India does not have a single separate statute dealing exclusively with financial cyber crimes. Depending upon the nature of the offence, liability may arise under the **Information Technology Act, 2000**, the **Bharatiya Nyaya Sanhita, 2023**, and other applicable laws and regulatory directions.

1. Information Technology Act, 2000

The Information Technology Act contains several provisions that may apply to financial cyber offences.

Section 43

Section 43 provides for compensation where a person, without permission of the owner or person in charge of a computer resource, commits certain acts such as unauthorized access, downloading, copying or extracting data, introducing computer contaminants, damaging computer systems or disrupting computer resources.

Section 66

Where the acts mentioned under Section 43 are committed dishonestly or fraudulently, Section 66 may provide criminal liability.

Section 66C – Identity Theft

Section 66C deals with the fraudulent or dishonest use of another person's electronic signature, password or other unique identification feature.

This provision is particularly relevant in cases involving the misuse of banking passwords, login credentials and other digital identifiers.

Section 66D – Cheating by Personation

Section 66D deals with cheating by personation through the use of a computer resource or communication device.

It is relevant where an offender impersonates a bank official, customer-care representative or another person in order to commit financial fraud.

2. Bharatiya Nyaya Sanhita, 2023

Where the facts disclose offences such as cheating, criminal breach of trust, forgery, extortion or other traditional offences, the relevant provisions of the **Bharatiya Nyaya Sanhita, 2023** may also apply.

Therefore, a single act of financial cyber fraud may attract liability under both cyber law and general criminal law, depending upon the facts of the case.

3. Banking and Regulatory Framework

Financial institutions and payment systems are also subject to regulatory requirements and cybersecurity measures. The **Reserve Bank of India (RBI)** plays an important role in regulating banks and payment systems and issues directions and frameworks relating to digital payments, cybersecurity and unauthorized electronic banking transactions.

The legal and regulatory framework therefore aims to:

- Protect customers;
- Prevent unauthorized transactions;
- Improve cybersecurity;
- Establish responsibilities of banks and payment service providers; and
- Provide mechanisms for reporting and redressal.

➤ Important Case Law

1. NASSCOM v. Ajay Sood & Others (2005)

This case is regarded as an important Indian decision relating to **phishing**.

The defendants were involved in sending fraudulent emails by falsely representing themselves as a legitimate organization and attempting to obtain confidential information.

The Delhi High Court recognized phishing as a form of online fraud and granted relief against such unlawful conduct.

Importance: The case is significant because it recognized the serious nature of phishing and demonstrated the application of legal principles to financial and identity-related fraud committed through electronic communication.

2. Avnish Bajaj v. State (NCT of Delhi)

The case, popularly known as the **Baazee.com case**, is important in the development of Indian cyber law and intermediary liability.

Although it did not primarily concern financial fraud, the case is relevant to the broader development of legal principles relating to online platforms and electronic transactions.

➤ Conclusion

Financial cyber crimes have increased with the growth of digital banking and electronic payment systems. Common forms include phishing, identity theft, card fraud, online banking fraud, UPI fraud, impersonation, investment fraud and business email compromise.

In India, such offences may be dealt with under the **Information Technology Act, 2000**, particularly Sections **43, 66, 66C and 66D**, along with the relevant provisions of the **Bharatiya Nyaya Sanhita, 2023** and the applicable regulatory framework governing banks and digital payment systems.

2. CYBER TERRORISM

Cyber terrorism is one of the most serious forms of cyber crime. It involves the use of computers, computer networks, communication systems or other digital resources to threaten the security, sovereignty, integrity or interests of a State, or to create terror among people.

With the increasing dependence of governments and essential services on digital systems, cyber terrorism has become a serious threat to national security and critical infrastructure.

(i) Definition and Nature of Cyber Terrorism

Meaning of Cyber Terrorism

Cyber terrorism may broadly be defined as the use of computer resources, computer networks or digital technology for terrorist activities or for causing serious harm to national security, critical infrastructure or public safety.

In simple words:

Cyber terrorism is the use of cyberspace or computer resources to carry out terrorist activities or to threaten the security and interests of the State.

Cyber terrorism may involve attacks on important computer systems, unauthorized access to sensitive information, disruption of essential services or other acts intended to threaten national security.

Legal Definition under Indian Law

In India, **Section 66F of the Information Technology Act, 2000** specifically deals with **Cyber Terrorism**.

Under Section 66F, a person may commit cyber terrorism where, with the required intention, the person uses computer resources or causes specified harmful consequences that threaten or are likely to threaten:

- The unity, integrity, security or sovereignty of India;
- The security of the State;
- Friendly relations with foreign States; or
- The interests of the nation.

The provision also covers certain acts intended to strike terror or likely to strike terror among people or any section of people.

Section 66F further covers unauthorized access to, or access to restricted information or computer resources in certain circumstances where the information is likely to be used for purposes prejudicial to the sovereignty, integrity, security or interests of India.

Nature of Cyber Terrorism

The main characteristics of cyber terrorism are as follows:

1. Use of Computer Resources

Cyber terrorism is committed through computers, networks, communication devices or other computer resources.

2. Threat to National Security

The offence is generally connected with threats to the sovereignty, integrity, security or other important interests of the State.

3. Intention to Create Terror

An important element of cyber terrorism is the intention to threaten or create terror among people or to cause serious harm to the State or society.

4. Targeting Critical Infrastructure

Cyber terrorists may target important systems connected with:

- Defence;
- Banking and financial services;
- Energy and power supply;
- Transport;
- Communication networks; and
- Government systems.

An attack on such systems can affect a large number of people and may seriously disrupt public life.

5. Borderless Character

Cyber terrorism can be carried out from one country against systems located in another country. This creates difficulties relating to jurisdiction, investigation and international cooperation.

6. Serious Consequences

A successful cyber terrorist attack may result in:

- Disruption of essential services;
- Economic loss;
- Damage to important information systems;
- Threats to national security; and
- Fear or panic among the public.

➤ Important Case Law

There are limited reported Indian judicial decisions specifically resulting in a landmark interpretation of **Section 66F of the Information Technology Act, 2000**. Therefore, Section 66F and its statutory requirements remain the primary basis for understanding cyber terrorism under Indian law.

However, the following case is relevant to the constitutional and national-security context of cyber law:

Shreya Singhal v. Union of India (2015)

The Supreme Court examined the constitutional validity of certain provisions of the Information Technology Act. The Court struck down **Section 66A** as unconstitutional but upheld the constitutional validity of provisions such as **Section 69A**, subject to the safeguards provided by law.

Importance: The case is significant because it demonstrates the balance between freedom of speech and the legitimate power of the State to take action in matters involving sovereignty, security and public order in the digital environment.

(ii) Prevention of Cyber Terrorism

The prevention of cyber terrorism requires technological security, effective laws, intelligence gathering, trained agencies and cooperation at national and international levels.

1. Protection of Critical Information Infrastructure

Critical information infrastructure must be protected against cyber attacks. Important systems relating to defence, communication, banking, energy and transport require strong cybersecurity measures.

The **Information Technology Act, 2000** provides a legal framework for the protection of certain critical information infrastructure.

2. Strong Cybersecurity Measures

Government departments and important organizations should adopt appropriate cybersecurity practices, including:

- Strong access controls;
- Regular security updates;
- Continuous monitoring;
- Security testing; and
- Protection against unauthorized access.

3. Early Detection and Incident Response

Cyber attacks should be detected and reported as early as possible. A proper incident-response system helps in controlling the damage and restoring affected computer systems.

4. Role of CERT-In

The **Indian Computer Emergency Response Team (CERT-In)** plays an important role in responding to cybersecurity incidents and providing information and guidance relating to cybersecurity.

CERT-In functions under the legal framework provided by the Information Technology Act.

5. Protection of Sensitive Information

Sensitive government and security-related information should be properly protected through appropriate security measures and restricted access.

Only authorized persons should be allowed to access highly sensitive computer systems and information.

6. Intelligence and Law-Enforcement Measures

Government agencies and law-enforcement authorities require appropriate technical knowledge and resources to investigate cyber threats and identify persons involved in cyber terrorist activities.

7. International Cooperation

Since cyber terrorism may involve offenders, victims and computer systems located in different countries, international cooperation is essential for:

- Investigation;

- Exchange of information;
- Collection of electronic evidence; and
- Action against cross-border cyber threats.

8. Public Awareness and Training

Government employees, organizations and the general public should be educated about cybersecurity risks. Human error, weak passwords and lack of awareness can create vulnerabilities that may be exploited by attackers.

9. Effective Legal Framework

Strong legislation and effective enforcement are necessary to prevent and punish cyber terrorism. The Information Technology Act, 2000, particularly **Section 66F**, provides specific punishment for cyber terrorism.

➤ Conclusion

Cyber terrorism is a serious threat arising from the misuse of computer resources and cyberspace for activities affecting national security and public safety. Its consequences may extend beyond individual victims and affect critical infrastructure, government institutions and society as a whole.

In India, **Section 66F of the Information Technology Act, 2000** specifically deals with cyber terrorism. The prevention of cyber terrorism requires a coordinated approach involving strong cybersecurity, protection of critical infrastructure, effective incident response, trained authorities, public awareness and international cooperation.

3. E-COMMERCE

➤ Meaning of E-Commerce

Electronic Commerce (E-Commerce) means the buying and selling of goods and services, or the exchange of commercial information, through electronic means, particularly through the Internet and computer networks.

In simple words, when commercial transactions are conducted electronically instead of through traditional physical methods, they are known as **E-Commerce**.

Examples of e-commerce include:

- Online shopping;
- Internet banking;
- Online payment of bills;
- Online booking of tickets and hotels;
- Digital marketplaces; and
- Electronic business transactions.

E-commerce has reduced the need for physical documents and face-to-face transactions. A person can enter into a commercial transaction, make payment and receive services through electronic means.

Types of E-Commerce

The major types of e-commerce are:

1. **Business to Business (B2B):** Transactions between two business organizations.
2. **Business to Consumer (B2C):** Transactions between a business and an individual consumer.
3. **Consumer to Consumer (C2C):** Transactions between individual consumers through an online platform.
4. **Consumer to Business (C2B):** Transactions in which an individual provides goods or services to a business.

Legal Recognition of E-Commerce in India

The growth of e-commerce required legal recognition of electronic records and electronic transactions. The **Information Technology Act, 2000** provides the legal framework for electronic records, electronic signatures and electronic transactions.

Important provisions include:

- **Section 4** – Legal recognition of electronic records;
- **Section 5** – Legal recognition of electronic signatures;
- **Section 10A** – Validity of contracts formed through electronic means; and
- **Sections 6 and 8** – Electronic governance and electronic publication of rules, regulations and notifications.

Thus, the Information Technology Act, 2000 provides an important legal foundation for the development of e-commerce in India.

➤ (ii) Digital Signature

Meaning

A **Digital Signature** is a method of authenticating an electronic record. It is used to verify the identity of the person signing an electronic document and to ensure the authenticity and integrity of the electronic record.

Under the Information Technology Act, 2000, the concept of electronic authentication has developed beyond digital signatures. The Act, after amendment, recognizes **electronic signatures** as the broader legal concept.

A digital signature is based on cryptographic technology and is one form of electronic signature recognized under the legal framework.

Functions of a Digital Signature

A digital signature performs the following important functions:

1. **Authentication:** It helps establish the identity of the person who has signed the electronic record.
2. **Integrity:** It helps detect whether the electronic record has been altered after signing.
3. **Non-repudiation:** It provides greater reliability regarding the origin and authentication of an electronic record, subject to the applicable law and facts of the case.

Legal Recognition

Section 5 of the Information Technology Act, 2000 provides legal recognition to electronic signatures, subject to the conditions prescribed by law.

The Information Technology Act provides a legal framework relating to the authentication of electronic records and the regulation of electronic signature certificates and related authorities.

Importance of Digital Signatures

Digital signatures are important in:

- Electronic filing;
- Digital documentation;
- Business transactions;
- Government services;
- Authentication of electronic records; and
- Secure electronic communication.

Therefore, digital signatures play an important role in establishing trust and authenticity in electronic transactions.

➤ (iii) E-Contract

Meaning of E-Contract

An **Electronic Contract or E-Contract** is a contract formed through electronic means rather than through traditional paper-based communication.

An e-contract may be created through:

- Email;
- Websites;
- Online platforms;
- Mobile applications; or
- Other electronic communication.

For example, when a person accepts the terms and conditions of an online service and completes a transaction electronically, an electronic contract may come into existence.

Essential Elements

An e-contract must satisfy the essential requirements of a valid contract. These include:

1. Offer;
2. Acceptance;
3. Lawful consideration;
4. Competency of parties;
5. Free consent; and
6. Lawful object.

The fact that a contract has been formed electronically does not, by itself, make it invalid.

Legal Recognition under the IT Act

Section 10A of the Information Technology Act, 2000 provides that where, in the formation of a contract, the communication of proposals, acceptance of proposals, revocation of proposals and acceptances are expressed in electronic form or by means of an electronic record, such contract shall not be deemed unenforceable solely because electronic means or electronic records were used for that purpose.

Thus, an otherwise valid contract cannot be denied legal effect merely because it was concluded electronically.

➤ Types of E-Contracts

Common forms of e-contracts include:

1. Click-Wrap Agreements

These agreements require the user to click an option such as **“I Agree”** or **“Accept”** before using a website, application or service.

2. Browse-Wrap Agreements

In these agreements, the terms and conditions are generally made available on a website, and the user's use of the website may be treated as acceptance, depending upon the facts and the validity of notice and consent.

3. Email Contracts

Contracts may also be formed through the exchange of electronic communications such as emails, provided the essential requirements of a valid contract are satisfied.

➤ (iv) E-Governance

Meaning of E-Governance

Electronic Governance or E-Governance means the use of information and communication technology by the Government for providing public services, exchanging information and performing administrative functions electronically.

The purpose of e-governance is to make government services more:

- Efficient;
- Accessible;
- Transparent;
- Convenient; and
- Faster.

Examples include:

- Online submission of applications;
- Electronic filing of documents;
- Online payment of government fees;
- Digital certificates and records;
- Online delivery of public services; and
- Electronic communication between citizens and government authorities.

Legal Recognition under the Information Technology Act, 2000

The Information Technology Act, 2000 provides a legal framework for e-governance.

Section 6 enables the use of electronic records and electronic signatures in dealings with government agencies, subject to the provisions of law.

The Act facilitates electronic filing, creation, retention and other use of electronic records in government activities.

Section 8 provides for the publication of rules, regulations, notifications and other matters in electronic form.

Thus, the IT Act has played an important role in promoting paperless administration and digital delivery of government services.

Importance of E-Governance

E-governance provides several advantages:

1. It saves time and reduces paperwork.
2. It improves access to government services.
3. It promotes transparency and efficiency.
4. It enables faster communication and processing.
5. It supports the development of a digital administration system.

➤ Important Case Law

Trimex International FZE Ltd. v. Vedanta Aluminium Ltd. (2010)

In this case, the Supreme Court recognized that a binding contract may arise through electronic communications such as emails, provided the essential elements of a valid contract are present.

Importance: The case is an important authority regarding the validity and enforceability of contracts concluded through electronic communication.

P.R. Transport Agency v. Union of India (2006)

This case involved questions relating to electronic communication and the formation of contracts through email.

The Allahabad High Court recognized the importance of electronic communications in commercial transactions and considered the application of legal principles to contracts formed through electronic means.

Importance: The case is relevant to the legal recognition of electronic communication and e-contracts in India.

➤ Conclusion

E-commerce has become an important part of the modern economy and depends upon a proper legal framework for electronic transactions. The **Information Technology Act, 2000** provides legal recognition to electronic records, electronic signatures and contracts formed through electronic means.

Digital signatures and other recognized electronic authentication methods help establish authenticity and integrity, while **Section 10A** gives legal recognition to contracts formed electronically. Similarly, e-governance enables the Government to use electronic records and digital technology for providing efficient and accessible public services.

UNIT – IV

PRIVACY IN CYBERSPACE

Privacy has become an important issue in cyberspace because individuals regularly share, store and transmit personal information through computers, smartphones and the Internet. Online activities may involve the collection and use of personal data, communication records, photographs, financial information and other private information.

The development of digital technology has therefore created a need to protect the privacy of individuals while also allowing the lawful use of information and communication technologies.

(i) Right to Privacy

Meaning of Right to Privacy

The **Right to Privacy** generally means the right of an individual to control access to his or her personal life, personal information and private communications. In the digital environment, privacy includes protection against unauthorized collection, use, disclosure or misuse of personal information.

Privacy in cyberspace may relate to:

- Personal information;
- Private communications;
- Financial information;
- Online activities;
- Photographs and videos;
- Location and other personal data; and
- Digital identity.

Right to Privacy as a Fundamental Right

The Supreme Court of India, in the landmark case of **Justice K. S. Puttaswamy (Retd.) v. Union of India (2017)**, unanimously recognized the **Right to Privacy as a fundamental right** protected under the Constitution of India.

The Court held that privacy is an essential part of the right to life and personal liberty under **Article 21**, as well as other freedoms guaranteed by Part III of the Constitution.

The judgment is particularly important in the digital age because the collection and processing of personal information can significantly affect an individual's autonomy and dignity.

However, the right to privacy is **not absolute**. A restriction on privacy must satisfy constitutional and legal requirements, including the existence of law, a legitimate objective and appropriate safeguards against arbitrary interference.

Privacy and Cyber Law

The Information Technology Act, 2000 contains certain provisions relating to privacy and protection against the misuse of information.

Important provisions include:

- **Section 43A** – Compensation for failure by a body corporate to protect certain data, subject to the statutory conditions;
- **Section 66E** – Punishment for violation of privacy in specified circumstances; and
- **Section 72** – Penalty for breach of confidentiality and privacy by a person who has secured access to certain information under powers conferred by the Act, rules or regulations.

The legal framework relating to personal data in India has also developed through the **Digital Personal Data Protection Act, 2023**, which provides a separate statutory framework for digital personal data, subject to its notified commencement and implementation.

(ii) Activities on the Internet Which Can Affect Privacy

Several activities carried out through the Internet may affect the privacy of individuals.

1. Collection of Personal Data

Websites, applications and online platforms may collect personal information such as:

- Name;
- Contact details;
- Financial information;
- Location-related information; and
- Information relating to online activities.

Improper or unauthorized collection and use of such information may affect privacy.

2. Tracking and Monitoring of Online Activities

Internet users may be tracked through various technologies that record browsing behaviour, online preferences and other digital activities.

Excessive or unauthorized monitoring may result in an invasion of privacy.

3. Unauthorized Access to Accounts

Unauthorized access to a person's email, social media, banking or other digital accounts may expose private communications and confidential information.

4. Identity Theft and Impersonation

The misuse of passwords, electronic signatures or other unique identification features may result in identity theft and serious financial or personal harm.

5. Publication of Private Information

Personal photographs, videos, messages or other confidential information may be published or circulated online without the consent of the concerned person.

Such acts may cause loss of privacy and damage to the reputation of the victim.

6. Social Media Activities

Information voluntarily shared on social media may be copied, collected, misused or circulated beyond the control of the original user.

Users may unknowingly disclose significant personal information through posts, photographs and other online activities.

7. Online Surveillance

Digital technology can be used for monitoring communications and online activities. Unlawful surveillance or unauthorized interception may seriously interfere with an individual's privacy.

8. Data Breaches

A data breach may result in unauthorized access to personal or confidential information stored by an organization. Such information may subsequently be misused for fraud, identity theft or other unlawful purposes.

(iii) Liabilities of an Internet Service Provider in Cyberspace

Meaning of Internet Service Provider

An **Internet Service Provider (ISP)** is an entity that provides access to the Internet or related communication services. In the broader digital environment, online service providers may also fall within the concept of an **intermediary** under the Information Technology Act, depending upon the nature of the service provided.

An intermediary may include entities that receive, store or transmit electronic records on behalf of another person or provide services relating to such records.

General Principle of Liability

An ISP or intermediary is not automatically liable for every unlawful act committed by its users. The **Information Technology Act, 2000**, particularly **Section 79**, provides conditional protection from liability for intermediaries in respect of certain third-party information, data or communication links.

This protection is commonly referred to as **safe harbour**.

However, safe harbour is not absolute. An intermediary must satisfy the conditions prescribed by law and observe the required due diligence.

Situations in Which Liability May Arise

An intermediary or service provider may lose the benefit of statutory protection where the legal conditions for safe harbour are not fulfilled. Liability may arise, depending upon the facts and applicable law, where the intermediary:

- Participates in the unlawful act;
- Conspires or abets the commission of an offence;
- Fails to observe legally required due diligence;
- Fails to comply with a lawful order or notice where action is required under the applicable legal framework; or
- Otherwise fails to satisfy the statutory conditions for protection.

Duty to Observe Due Diligence

Intermediaries are required to observe due diligence and comply with applicable rules and legal requirements. Their responsibilities may include appropriate procedures for dealing with unlawful content and compliance with lawful directions issued by competent authorities or courts.

Thus, the liability of an ISP or intermediary depends upon its role, knowledge, participation and compliance with the requirements of the law.

➤ Important Case Laws

1. Justice K. S. Puttaswamy (Retd.) v. Union of India (2017)

The Supreme Court held that the **Right to Privacy is a fundamental right** under the Constitution of India.

Importance: This is the leading case on privacy in India and forms the constitutional foundation for the protection of privacy in the digital age.

2. Shreya Singhal v. Union of India (2015)

The Supreme Court struck down **Section 66A of the Information Technology Act, 2000** as unconstitutional.

The Court also considered **Section 79** relating to intermediary liability and interpreted the circumstances in which an intermediary may be required to act against unlawful content.

Importance: This is a landmark case concerning freedom of speech on the Internet and the liability and safe-harbour protection of intermediaries.

3. K.S. Puttaswamy v. Union of India (2019)

This decision concerning the Aadhaar framework further considered the relationship between privacy, personal information and the legitimate functions of the State.

Importance: The case is relevant to understanding how the right to privacy operates in relation to the collection and use of personal data.

Conclusion

Privacy in cyberspace is essential for protecting the dignity, autonomy and personal information of individuals in the digital environment. The increasing use of the Internet has created new risks such as unauthorized access, identity theft, online surveillance, misuse of personal information and data breaches.

In India, the constitutional recognition of privacy as a fundamental right, together with the **Information Technology Act, 2000**, rules relating to intermediaries and the developing data protection framework, provides the legal basis for addressing privacy concerns in cyberspace. The liability of an Internet Service Provider or intermediary is generally governed by the principle of conditional safe harbour, subject to compliance with statutory requirements and due diligence.

2. THE INFORMATION TECHNOLOGY ACT, 2000 WITH AMENDMENTS

An Overview of the Act

The **Information Technology Act, 2000** is the principal legislation dealing with electronic transactions, electronic records, electronic signatures and various cyber offences in India. It was enacted to provide a legal framework for the increasing use of computers, the Internet and electronic communication.

The Act received the assent of the President on **9 June 2000** and came into force on **17 October 2000**. It is applicable throughout India and, under certain circumstances, also has **extra-territorial application**.

The Act was substantially amended by the **Information Technology (Amendment) Act, 2008**, which came into force on **27 October 2009**. The amendment expanded the scope of the Act and introduced several important provisions relating to electronic signatures, cyber offences, data protection, privacy, cybersecurity and intermediary liability.

1. Objectives of the Information Technology Act, 2000

The main objectives of the Act are:

1. To provide **legal recognition to electronic records**.
2. To provide legal recognition to **electronic signatures**.
3. To facilitate **electronic commerce and electronic transactions**.
4. To promote **electronic governance**.
5. To provide a legal framework for the use and acceptance of electronic records by government agencies.
6. To define and punish certain **computer-related and cyber offences**.
7. To provide for the regulation of **Certifying Authorities** and electronic signature certificates.
8. To deal with matters relating to **cybersecurity, confidentiality and privacy**.
9. To provide conditional protection from liability to **intermediaries**.
10. To facilitate the development of a secure and legally recognized digital environment.

2. Structure and Major Provisions of the Act

The Information Technology Act, 2000 is divided into various chapters dealing with different aspects of information technology and cyber law.

Chapter I – Preliminary

This chapter contains the **short title, extent, application and definitions**.

Important definitions include terms such as:

- Computer;
- Computer network;
- Computer resource;
- Computer system;
- Data;
- Electronic record;
- Electronic signature;
- Intermediary; and
- Communication device.

Section 1 deals with the short title, extent and commencement of the Act.

Section 2 contains important definitions used throughout the Act.

Chapter II – Digital Signature and Electronic Signature

Originally, the Act mainly recognized the concept of the **digital signature**.

After the 2008 Amendment, the concept of **electronic signature** was introduced as a broader method of authentication.

The important provisions include:

- **Section 3** – Authentication of electronic records by digital signature.
- **Section 3A** – Electronic signature and its authentication.

Thus, the amendment made the legal framework more technologically flexible by recognizing electronic signatures in addition to the earlier concept of digital signatures.

Chapter III – Electronic Governance

This chapter facilitates the use of electronic records and electronic signatures in government and public administration.

Important provisions include:

Section 4 – Legal Recognition of Electronic Records

An electronic record cannot be denied legal recognition merely because it is in electronic form, provided the legal requirements are satisfied.

Section 5 – Legal Recognition of Electronic Signatures

Electronic signatures are given legal recognition in accordance with the provisions of the Act.

Section 6 – Use of Electronic Records and Electronic Signatures in Government

This provision enables government agencies to accept and use electronic records and electronic signatures, subject to the prescribed conditions.

Thus, this chapter provides an important legal basis for **e-governance and paperless administration**.

Chapter IV – Attribution, Acknowledgment and Dispatch of Electronic Records

This part deals with legal issues relating to the communication of electronic records.

It includes provisions concerning:

- Attribution of electronic records;
- Acknowledgment of receipt; and
- Time and place of dispatch and receipt of electronic records.

These provisions are important in determining when an electronic communication or transaction becomes legally effective.

Chapter V – Secure Electronic Records and Secure Electronic Signatures

The Act provides for the concept of secure electronic records and secure electronic signatures.

Security procedures are intended to increase the reliability and authenticity of electronic records and electronic authentication.

Chapter VI – Regulation of Certifying Authorities

The Act establishes a legal framework for the regulation of **Certifying Authorities**, which are responsible for issuing electronic signature certificates in accordance with the law.

The **Controller of Certifying Authorities (CCA)** is an important authority under the Act.

The Controller performs functions relating to the regulation and supervision of Certifying Authorities and the electronic authentication framework.

Chapter VII – Electronic Signature Certificates

This chapter deals with matters relating to electronic signature certificates, including their issuance, suspension and revocation.

Electronic signature certificates play an important role in verifying and authenticating electronic transactions.

3. Civil Liability and Compensation

Section 43

Section 43 deals with unauthorized acts relating to computer resources.

It provides for compensation where a person, without the permission of the owner or person in charge of a computer resource, commits certain acts, such as:

- Accessing or securing access to a computer resource;
- Downloading, copying or extracting data;
- Introducing a computer contaminant or virus;
- Damaging or disrupting a computer system;
- Denying access to an authorized user; or
- Other acts specified under the section.

Thus, Section 43 primarily deals with **civil liability and compensation** for unauthorized acts involving computer resources.

Section 43A

Section 43A was inserted by the **Information Technology (Amendment) Act, 2008**.

It provides for compensation in cases where a body corporate possessing, dealing or handling sensitive personal data or information is negligent in implementing and maintaining reasonable security practices and procedures, resulting in wrongful loss or wrongful gain.

This provision represented an important development in the field of **data protection and information security**.

4. Cyber Offences and Penalties

The Act contains important provisions relating to cyber offences.

Section 66 – Computer-Related Offences

Where acts referred to in Section 43 are committed dishonestly or fraudulently, criminal liability may arise under Section 66.

Section 66C – Identity Theft

This section deals with the dishonest or fraudulent use of another person's:

- Electronic signature;
- Password; or
- Other unique identification feature.

Section 66D – Cheating by Personation

This provision deals with cheating by personation through the use of a computer resource or communication device.

It is particularly relevant in cases of online impersonation and digital fraud.

Section 66E – Violation of Privacy

Section 66E provides punishment for intentionally or knowingly capturing, publishing or transmitting the image of the private area of a person without consent, under the circumstances specified in the section.

Section 66F – Cyber Terrorism

Section 66F specifically deals with cyber terrorism and provides severe punishment for activities falling within its scope.

Cyber terrorism involves serious misuse of computer resources affecting or threatening important interests such as the sovereignty, integrity and security of India.

Sections 67, 67A and 67B

These sections deal with certain prohibited forms of electronic content:

- **Section 67** – Obscene material in electronic form;
- **Section 67A** – Material containing sexually explicit acts or conduct;
- **Section 67B** – Material involving the sexual exploitation of children in electronic form.

5. Important Powers of the Government

The Information Technology Act also gives certain powers to the Government and authorized agencies.

Section 69

Section 69 provides for the interception, monitoring or decryption of information through a computer resource, subject to the conditions and safeguards provided by law.

Section 69A

Section 69A empowers the Central Government to issue directions for blocking public access to information through a computer resource, subject to the statutory procedure and safeguards.

Section 69B

Section 69B deals with the authorization of monitoring and collection of traffic data or information for specified purposes relating to cybersecurity.

6. Protection of Critical Information Infrastructure

The 2008 Amendment introduced important provisions relating to cybersecurity and critical information infrastructure.

Section 70

Section 70 enables the Government to declare certain computer resources as **protected systems**.

Access to such protected systems may be restricted to authorized persons.

Section 70A

Section 70A provides for the designation of a national agency responsible for the protection of critical information infrastructure.

Section 70B – CERT-In

Section 70B provides statutory recognition to the **Indian Computer Emergency Response Team (CERT-In)**.

CERT-In performs an important role in:

- Collecting information relating to cybersecurity incidents;
- Providing alerts and advisories;
- Coordinating responses to cybersecurity incidents; and
- Performing other functions provided by law.

7. Confidentiality and Privacy

The Act contains provisions relating to confidentiality and privacy.

Section 72

Section 72 provides punishment for breach of confidentiality and privacy by a person who has secured access to electronic information under powers conferred by the Act, rules or regulations and subsequently discloses such information without consent.

The Act also contains other provisions relevant to privacy and protection of information.

8. Intermediary Liability

Section 79 – Safe Harbour

Section 79 provides conditional protection to intermediaries from liability for certain third-party information, data or communication links made available or hosted by them.

This protection is commonly known as **safe harbour**.

However, an intermediary must comply with the statutory conditions and required due diligence. Safe-harbour protection is not available in every situation.

The liability of intermediaries has been an important subject of judicial interpretation and regulation.

9. Extra-Territorial Application

Section 75

One of the important features of the Information Technology Act is its **extra-territorial application**.

The Act may apply to an offence or contravention committed outside India if the act involves a computer, computer system or computer network located in India, subject to the requirements of Section 75.

This provision is important because cyber crimes frequently involve persons and computer systems located in different countries.

10. Important Amendments Made by the IT Amendment Act, 2008

The **Information Technology (Amendment) Act, 2008** made several important changes to the original Act.

Some major changes were:

1. Introduction of Electronic Signature

The concept of electronic signature was introduced as a broader concept than the earlier digital signature.

2. New Cyber Offences

Important provisions relating to the following were introduced:

- Identity theft – Section 66C;
- Cheating by personation – Section 66D;
- Violation of privacy – Section 66E; and
- Cyber terrorism – Section 66F.

3. Data Protection

Section 43A was introduced to deal with compensation arising from failure to protect sensitive personal data or information under the conditions specified in the section.

4. Obscenity and Child Sexual Exploitation Material

The law relating to electronic content was strengthened through provisions such as Sections **67A and 67B**.

5. Intermediary Liability

Section 79 was amended to provide a framework of conditional safe-harbour protection for intermediaries.

6. Cybersecurity and Critical Infrastructure

Sections **70A and 70B** strengthened the legal framework relating to critical information infrastructure and CERT-In.

7. Government Powers

The amended Act contains provisions relating to interception, monitoring, decryption and blocking of information, subject to statutory conditions and safeguards.

11. Important Judicial Developments

Shreya Singhal v. Union of India (2015)

This is one of the most important cases under the Information Technology Act.

The Supreme Court declared **Section 66A unconstitutional** on the ground that it violated the constitutional guarantee of freedom of speech and expression.

The Court also considered the interpretation of **Section 69A** relating to blocking of online information and **Section 79** relating to intermediary liability.

Importance: The case is a landmark decision balancing freedom of expression, online regulation and intermediary liability.

Justice K.S. Puttaswamy (Retd.) v. Union of India (2017)

The Supreme Court recognized the **Right to Privacy as a fundamental right** under the Constitution.

Importance: The decision has significant implications for digital privacy, personal data and the use of information technology.

P.R. Transport Agency v. Union of India (2006)

The Allahabad High Court dealt with legal issues relating to contracts and communication through electronic means.

Importance: The case is relevant to the recognition and validity of electronic communications and electronic contracts.

12. Current Legal Position

The Information Technology Act, 2000 continues to be the principal Indian law governing several areas of cyber law, particularly:

- Electronic records;
- Electronic signatures;
- E-commerce;
- E-governance;
- Computer-related offences;
- Cybersecurity;
- Intermediary liability; and
- Certain privacy and confidentiality issues.

However, the legal framework surrounding information technology has expanded through other legislation and rules. In particular, the **Digital Personal Data Protection Act, 2023** provides a separate framework relating to digital personal data.

It is also important to note that **Section 66A of the Information Technology Act has been struck down** by the Supreme Court in *Shreya Singhal v. Union of India (2015)* and is therefore not enforceable.

Conclusion

The **Information Technology Act, 2000** is a landmark legislation that established the legal foundation for electronic transactions and cyber law in India. It provides legal recognition to electronic records and electronic signatures, facilitates e-commerce and e-governance, and contains provisions relating to cyber offences, cybersecurity, privacy and intermediary liability.

The **Information Technology (Amendment) Act, 2008** significantly expanded the scope of the original Act by introducing new offences and strengthening the legal framework relating to data protection, cybersecurity, electronic authentication and online intermediaries.

Thus, the Information Technology Act, 2000, together with its amendments, rules, judicial decisions and related legislation, forms an important part of India's legal framework for regulating activities in cyberspace.

~Abhishek Chaudhary